

25STCV08510 25STCV08510

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 25STCV08510 Hearing Date: August 31, 2026 Dept: 408

1. Plaintiff

Clayton Lind's Motion to Stay Proceedings is DENIED.

2.

Defendant

General Motors, LLC's Motion for Compliance pursuant to Code of Civil Procedure section 871.26 as to Plaintiff Sinecio Mecinas is DENIED as moot.

I.

BACKGROUND

On March 24, 2025, Plaintiff Sinecio

Mecinas ("Plaintiff") filed a complaint against Defendant General Motors, LLC ("Defendant") alleging causes of action for:

1.

Violation

of Subdivision (d) of Civil Code Section 1793.2;

2.

Violation

of Subdivision (b) of Civil Code Section 1793.2;

3.

Violation

of Subdivision (a)(3) of Civil Code Section 1793.2;

4.

Breach
of the Implied Warranty of Merchantability; and

5.
Fraudulent
Inducement – Concealment.

On September 5, 2025, Plaintiff
filed a First Amended Complaint (“FAC”).

On November 21, 2025, the court
overruled Defendant’s Demurrer to Plaintiff’s FAC.

On May 12, 2026, Defendant filed
this Motion for Compliance pursuant to Code of Civil Procedure section 871.26
and Request for Sanctions. On August 12, 2026, Plaintiff filed an opposition.
As of August 26, 2026, no reply has been filed.

On June 23, 2026, Plaintiff filed
this Motion to Stay Proceedings. As of August 26, 2026, no opposition or reply
has been filed.

II.

MOTION TO STAY PROCEEDINGS

A.

Legal Standard

A court ordinarily has
inherent power, in its discretion, to stay proceedings when such a stay will
accommodate the ends of justice. (OTO, L.L.C. v. Kho, (2019) 8 Cal.5th
111, 141.) The power to stay proceedings is incidental to the power inherent in
every court to control the disposition of the cause on its docket with the
economy of time and effort for itself, for counsel, and for litigants. (Ibid.)

B.

Discussion

Plaintiff

moves to stay all proceedings pending resolution of the appeal in Price v. General Motors arguing that such decision will determine a novel issue splitting the trial courts concerning whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect. (Motion, at p. 3.)

The court finds that a discretionary stay is not warranted. Plaintiff seeks a stay for an unknown period of time due to an appeal pending in an adjacent matter. This prejudices Defendant who is still litigating the surviving fraud-concealment claim. Second, Plaintiff is free to file a motion for reconsideration after the Court of Appeal rules, as needed. Therefore, the court is not inclined to exercise its discretion to issue a stay.

Accordingly, the motion is denied.

III.

MOTION

TO COMPEL COMPLIANCE

A.

Legal

Standard

To streamline the discovery process, the legislature enacted Assembly Bill 1755 effective as of January 1, 2025, which requires parties to provide certain initial disclosure and documents "without awaiting a discovery request" and "[w]ithin 60 days after the filing of the answer or other responsive pleading." (Code Civ. Proc., § 871.26, subd. (b).)

Regarding initial depositions in civil actions seeking restitution or replacement of a motor vehicle, Code of Civil Procedure section 871.26 provides, in relevant part, as follows:

"(c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial

depositions, each not to exceed two hours, of the following deponents:

(1) The plaintiff.

(2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i)."

(Code

Civ. Proc., § 871.26, subd. (c).)

If a party fails to comply with Section 871.26 and does not show good cause, a court shall impose sanctions in the amount of a "one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)" or "for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (Code Civ. Proc., § 871.26, subd. (j)(1)-(2).)

B.

Discussion

Defendant seeks to compel Plaintiffs to comply with Code of Civil Procedure section 871.26(c) to appear for initial depositions.

Under the current version of Section 871.26, effective January 1, 2025, a manufacturer must opt in to the procedures of the statute under Section 871.20 for Section 871.26 to apply. (Code Civ. Proc., §§ 871.20, 871.29.) From January 1, 2025, until April 2, 2025, a manufacturer was not required to opt in to the new lemon law protocols. Effective April 2, 2025, a manufacturer was required to opt in to the Section 871.26 procedures. (Ibid.) However, Section 871.26 remained unchanged. Section 871.26(1) states "[i]n addition to the requirements prescribed by subdivision (a), this section only applies to a civil action filed on or after January 1, 2025." (Code Civ. Proc., § 871.26, subd. (1).) Thus, at the time Plaintiffs filed the instant action on March 24,

2025, and when Defendant opted into the statutory framework on April 23, 2025, the procedures outlined in Section 871.26 applied to this litigation. (Motion, at pp. 13-14.)

Pursuant to Section 871.26(c), Defendant had the statutory right to conduct Plaintiff's initial deposition "within 120 days after the filing of the answer or other responsive pleading[.]" (Code Civ. Proc., § 871.26, subd. (c)(1).) Here, Defendant served its responsive pleading in the form of a demurrer to Plaintiff's complaint on August 18, 2025. (Motion, at p. 6; Lasater Decl., ¶ 3.) Accordingly, the 120-day time frame lapsed on December 16, 2025. As of the filing of this motion, on May 12, 2026, Plaintiff has objected to the initial deposition notice and failed to provide alternative dates of availability. (Lasater Decl., ¶¶ 5-8.)

In opposition, Plaintiff contends that the parties met and conferred and agreed on a date for Plaintiff's deposition following the filing of the instant motion. (Opp., at p. 2.) Consistent with that agreement, Defendant served an Amended Notice of Deposition setting Plaintiff's deposition for August 17, 2026. (Ibid.)

The court finds that the motion is now moot to the extent the parties held Plaintiff's deposition on the date agreed upon.

Accordingly, the motion is denied.

Defendant also requests sanctions against Plaintiff's counsel for failure to comply pursuant to Code of Civil Procedure section 871.26(j)(2). Absent good cause, sanctions are mandatory if a party fails to comply with Section 871.26. (Code Civ. Proc., § 871.26, subd. (j).) The court finds that sanctions are not warranted against Plaintiff's counsel due to the setting of a new deposition date.

IV.

CONCLUSION

1. Plaintiff

Clayton Lind's Motion to Stay Proceedings is DENIED.

2.

Defendant

General Motors, LLC's Motion for Compliance pursuant to Code of Civil Procedure section 871.26 as to Plaintiff Sinecio Mecinas is DENIED as moot.